

2013 SCC OnLine All 9135

(BEFORE SUNIL AMBWANI AND SURYA PRAKASH KESARWANI, JJ.)

Gul Mohammad Petitioner

v.

U.P. Power Corporation and 2 Others
Respondents

Counsel for Petitioner:- Janardan Prasad Tripathi

Counsel for Respondent:- Baleshwar Chaturvedi

Writ - C No. - 57502 of 2013

Decided on October 21, 2013

Hon'ble Sunil Ambwani, J.

Hon'ble Surya Prakash Kesarwani, J.

We have heard Sri Janardan Prasad Tripathi for the petitioner. Sri Baleshwar Chaturvedi appears for respondent Nos. 2 and 3 - Dakshinanchal Vidyut Vitran Nigam Ltd.

The petitioner's father was a consumer of electricity with the sanctioned load of 1 KV. It is alleged that the petitioner's father died after which the petitioner is paying the bills. A bill of Rs. 2761/- was due against the petitioner on 23.07.2011 whereas on 12.07.2011, a demand notice of Rs. 74,424/- has been sent to the petitioner under Section 3 of U.P. Electricity Undertaking (Recovery of Dues) Act 1957.

It is submitted by the petitioner that bill of Rs. 2761/- has been unreasonably inflated to Rs. 74,424/-, without any basis.

The Uttar Pradesh Electricity Supply Code 2005 made under the Electricity Act 2003, provides for redressal of any dispute regarding bills and arrears. Para 6.5 (b) of the Supply Code provides that if a consumer disputes the accuracy of any bill, he may either make the payment under protest of - (i) an amount equal to the sum claimed from him, or (ii) the electricity charges calculated on the basis of average of electricity bills of the preceding six months, whichever is less and file a complaint with the competent authority, before the due date for payment. The complaint shall be decided within 7 days and the consumer shall be informed.

The petitioner has option to pay electricity charges calculated on the basis of average of electricity bills of the preceding six months and file

the complaint with the competent authority.

Learned counsel for respondents informs that respondent No. 2 is the competent authority, to decide such dispute.

The writ petition is accordingly disposed of with directions that in case the petitioner disputes accuracy of the bill and makes a representation for correction of the bill, the same will be decided within seven days provided the petitioner deposits electricity charges calculated on the basis of average of electricity bills of the preceding six months. Until disposal of petitioner's application, recovery in pursuance of the demand notice shall remain stayed. If the petitioner does not make the representation within 15 days from today, this order will not benefit the petitioner.

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